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was labouring under that species of insanity which satisfies you that he was quite unaware of the nature, character, and consequences of the act he was committing, or, in other words, whether he was under the influence of a diseased mind, and was really unconscious at the time he was committing the act, that it was a crime.” *Id.*, at 546–547, 173 Eng. Rep., at 950. Although these and other English cases discuss insanity in terms that are less precise than our modern taxonomy of mental states, their lesson is clear. To be guilty of a crime, the accused must have something more than bare ability to form intentions and carry them out.

B

These fundamental principles of criminal responsibility were incorporated into American law from the early days of the Republic. Early American commentaries on the criminal law generally consisted of abridgments of the works of prominent English jurists. As early as 1792, one such abridgment instructed that “lunaticks, who are under a natural disability of distinguishing between good and evil are not punishable by any criminal prosecution.” R. Burn, *Abridgment, or the American Justice* 300; see also W. Stubbs, *Crown Circuit Companion* 288 (1st Am. ed. 1816) (“If one that is *non compos mentis* . . . kill a man, this is no felony; for they have not knowledge of good and evil, nor can have a felonious intent, nor a will or mind to do harm”). And an influential founding-era legal dictionary described the “general rule” that lunatics, “being by reason of their natural disabilities incapable of judging between good and evil, are punishable by no criminal prosecution whatsoever.” 2 T. Cunningham, *New and Complete Law Dictionary* (2d corr. ed. 1771). Similarly, the first comprehensive American text on forensic medicine, published in 1823, cited Chief Justice Mansfield’s charge to the jury in *Bellingham’s Case* for the proposition that “[s]o long as they could distinguish good from evil, so long would they be answerable for their con-

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duct.” 1 T. Beck, *Elements of Medical Jurisprudence* 369. These principles, it concluded, “are doubtless correct, and conducive to the ends of justice.” *Id.*, at 370.

Early American jurists closely hewed to these principles. In case after case, judges instructed juries that they must inquire into the defendant’s capacity for moral understanding. See, e.g., *Meriam’s Case*, 7 Mass. 168 (1810), 6 N. Y. City-Hall Recorder 162 (1822) (whether the defendant was “at the time, capable of distinguishing good from evil”); *Clark’s Case*, 1 N. Y. City-Hall Recorder 176, 177 (1816) (same); *Ball’s Case*, 2 N. Y. City-Hall Recorder 85, 86 (1817) (same); *United States v. Clarke*, 25 F. Cas. 454 (No. 14,811) (CC DC 1818) (whether defendant was “in such a state of mental insanity . . . as not to have been conscious of the moral turpitude of the act”); *Cornwell v. State*, 8 Tenn. 147, 155 (1827) (whether the prisoner “had not sufficient understanding to know right from wrong”).

C

As the foregoing demonstrates, by the time the House of Lords articulated the *M’Naghten* test in 1843, its “essential concept and phraseology” were “already ancient and thoroughly embedded in the law.” Platt & Diamond 1258; see also 1 W. Russell, *Crimes and Misdemeanors* 8–14 (3d ed. 1843) (summarizing the pre-*M’Naghten* English case law and concluding that the key questions were whether “there be thought and design, a faculty to distinguish the nature of actions, [and] to discern the difference between moral good and evil”). Variations on the *M’Naghten* rules soon became the predominant standard in the existing States of the United States. Platt & Diamond 1257. That tradition has continued, almost without exception, to the present day.

It is true that, even following *M’Naghten*, States continued to experiment with different formulations of the insanity defense. See *ante*, at 291–292. Some adopted the volitional incapacity, or “irresistible-impulse,” test. But those States

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understood that innovation to expand, not contract, the scope of the insanity defense, excusing not only defendants who met some variant of the traditional *M’Naghten* test but also those who understood that their conduct was wrong but were incapable of restraint. See, e.g., *Parsons v. State*, 81 Ala. 577, 584–585, 2 So. 854, 858–859 (1887); *Bradley v. State*, 31 Ind. 492, 507–508 (1869); *State v. Felter*, 25 Iowa 67, 82–83 (1868); *Hopps v. People*, 31 Ill. 385, 391–392 (1863).

So too, the “offspring” or “product” test, which asks whether the defendant’s conduct was attributable to mental disease or defect. The States that adopted this test did so out of the conviction that the *M’Naghten* test was too restrictive in its approach to assessing the accused’s capacity for criminal responsibility. See *Durham v. United States*, 214 F. 2d 862, 874 (CA-1 1954) (“We conclude that a broader test should be adopted”); *State v. Pike*, 49 N. H. 399, 441–442 (1870); see also Reid, Understanding the New Hampshire Doctrine of Criminal Insanity, 69 Yale L. J. 367, 386 (1960) (“[T]he New Hampshire doctrine . . . is more liberal and has a wider range than *M’Naghten* rules”). Even as States experimented with broader insanity rules, they retained the core of the traditional common-law defense.

In the early 20th century, several States attempted to break with that tradition. The high courts of those States quickly struck down their restrictive laws. As one justice of the Mississippi Supreme Court wrote in 1931: The “common law proceeds upon an idea that before there can be a crime there must be an intelligence capable of comprehending the act prohibited, and the probable consequence of the act, and that the act is wrong.” *Sinclair v. State*, 161 Miss. 142, 158, 132 So. 581, 583 (Ethridge, J., concurring). Accordingly, Justice Ethridge said, insanity “has always been a complete defense to all crimes from the earliest ages of the common law.” *Ibid.*; *State v. Strasburg*, 60 Wash. 106, 116, 110 P. 1020, 1022–1023 (1910); cf. *State v. Lange*, 168 La. 958, 965, 123 So. 639, 642 (1929).

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Today, 45 States, the Federal Government, and the District of Columbia continue to recognize an insanity defense that retains some inquiry into the blameworthiness of the accused. Seventeen States and the Federal Government use variants of the *M’Naghten* test, with its alternative cognitive and moral incapacity prongs. Three States have adopted *M’Naghten* plus the volitional test. Ten States recognize a defense based on moral incapacity alone. Thirteen States and the District of Columbia have adopted variants of the Model Penal Code test, which combines volitional incapacity with an expanded version of moral incapacity. See Appendix, *infra*. New Hampshire alone continues to use the “product” test, asking whether “a mental disease or defect caused the charged conduct.” *State v. Fichera*, 153 N. H. 588, 593, 903 A. 2d 1030, 1035 (2006). This broad test encompasses “‘whether the defendant knew the difference between right and wrong and whether the defendant acted impulsively,’” as well as “‘whether the defendant was suffering from delusions or hallucinations.’” *State v. Cegelis*, 138 N. H. 249, 255, 638 A. 2d 783, 786 (1994). And North Dakota uses a unique formulation that asks whether the defendant “lacks substantial capacity to comprehend the harmful nature or consequences of the conduct, or the conduct is the result of a loss or serious distortion of the individual’s capacity to recognize reality.” N. D. Cent. Code Ann. § 12.1–04.1–01(1) (2012).

Of the States that have adopted the *M’Naghten* or Model Penal Code tests, some interpret knowledge of wrongfulness to refer to moral wrong, whereas others hold that it means legal wrong. See *ante*, at 274–276, 293–295. While there is, of course, a logical distinction between those interpretations, there is no indication that it makes a meaningful difference in practice. The two inquiries are closely related and excuse roughly the same universe of defendants. See *State v. Worlock*, 117 N. J. 596, 609–611, 569 A. 2d 1314, 1321–1322 (1990) (“In most instances, legal wrong is coextensive with moral

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wrong”); *State v. Crenshaw*, 98 Wash. 2d 789, 799, 659 P. 2d 488, 494 (1983) (“[S]ince by far the vast majority of cases in which insanity is pleaded as a defense to criminal prosecutions involves acts which are universally recognized as morally wicked as well as illegal, the hair-splitting distinction between legal and moral wrong need not be given much attention”); *People v. Schmidt*, 216 N. Y. 324, 340, 110 N. E. 945, 949 (1915) (Cardozo, J.) (“Knowledge that an act is forbidden by law will in most cases permit the inference of knowledge that, according to the accepted standards of mankind, it is also condemned as an offense against good morals”); see also ALI, Model Penal Code §4.01, Explanatory Note, p. 164 (1985) (explaining that “few cases are likely to arise in which the variation will be determinative”).

III

A

Consider the basic reason that underlies and explains this long legal tradition. That reason reveals that more is at stake than its duration alone. The tradition reflects the fact that a community’s moral code informs its criminal law. As Henry Hart stated it, the very definition of crime is conduct that merits “a formal and solemn pronouncement of the moral condemnation of the community.” *The Aims of the Criminal Law*, 23 *Law & Contemp. Prob.* 401, 405 (1958).

The criminal law does not adopt, nor does it perfectly track, moral law. It is no defense simply to claim that one’s criminal conduct was morally right. But the criminal law nonetheless tries in various ways to prevent the distance between criminal law and morality from becoming too great. In the words of Justice Holmes, a law that “punished conduct [that] would not be blameworthy in the average member of the community would be too severe for that community to bear.” O. Holmes, *The Common Law* 50 (1881); see also *ibid.* (“[T]o deny that criminal liability . . . is founded on

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blameworthiness . . . would shock the moral sense of any civilized community”).

Sometimes the criminal law seeks to keep its strictures roughly in line with the demands of morality through grants of discretion that will help it to reach appropriate results in individual cases, including special instances where the law points one way and morality the other. Thus, prosecutors need not prosecute. Jurors (however instructed) may decide to acquit. Judges may exercise the discretion the law allows them to impose a lenient sentence. Executives may grant clemency.

And sometimes the law attempts to maintain this balance by developing and retaining a “collection of interlocking and overlapping concepts,” including defenses, that will help “assess the moral accountability of an individual for his antisocial deeds.” *Powell v. Texas*, 392 U. S. 514, 535–536 (1968) (plurality opinion). These concepts and defenses include “*actus reus*, *mens rea*, insanity, mistake, justification, and duress.” *Id.*, at 536.

As we have recognized, the “process of adjustment” within and among these overlapping legal concepts “has always been thought to be the province of the States.” *Ibid.* Matters of degree, specific content, and aptness of application all may be, and have always been, the subject of legal dispute. But the general purpose—to ensure a rough congruence between the criminal law and widely accepted moral sentiments—persists. To gravely undermine the insanity defense is to pose a significant obstacle to this basic objective.

The majority responds that Kansas has not removed the element of blameworthiness from its treatment of insanity; it has simply made a different judgment about what conduct is blameworthy. See *ante*, at 286, n. 7. That is not how the Kansas Supreme Court has characterized its law. See *State v. Bethel*, 275 Kan. 456, 472, 66 P. 3d 840, 850 (2003) (holding that Kansas law provides for “no consideration,” at the guilt phase, “of whether wrongfulness was inherent in the defend-

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ant's intent"). In any event, as the Court acknowledges, the States' discretion in this area must be constrained within "broad limits," *ante*, at 280, which are derived from history and tradition. The question is whether Kansas' approach transgresses those limits. I doubt that the Court would declare, for example, that a State may do away with the defenses of duress or self-defense on the ground that, in its idiosyncratic judgment, they are not required. With respect to the defense of insanity, I believe that our history shows clearly that the criminal law has always required a higher degree of individual culpability than the modern concept of *mens rea*. See Part II, *supra*. And in my view, Kansas' departure from this long uniform tradition poses a serious problem.

B

To see why Kansas' departure is so serious, go back to our two simplified prosecutions: the first of the defendant who, because of serious mental illness, believes the victim is a dog; the second of a defendant who, because of serious mental illness, believes the dog commanded him to kill the victim. Now ask, what moral difference exists between the defendants in the two examples? Assuming equivalently convincing evidence of mental illness, I can find none at all. In both cases, the defendants differ from ordinary persons in ways that would lead most of us to say that they should not be held morally responsible for their acts. I cannot find one defendant more responsible than the other. And for centuries, neither has the law.

More than that, scholars who have studied this subject tell us that examples of the first kind are rare. See Brief for 290 Criminal Law and Mental Health Law Professors as *Amici Curiae* 12. Others repeat this claim. See Slobogin, An End to Insanity: Recasting the Role of Mental Disability in Criminal Cases, 86 Va. L. Rev. 1199, 1205 (2000); Morse, Mental Disorder and Criminal Law, 101 J. Crim. L. & C. 885, 933 (2011). That is because mental illness typically does not

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deprive individuals of the ability to form intent. Rather, it affects their *motivations* for forming such intent. Brief for 290 Criminal Law and Mental Health Law Professors as *Amici Curiae* 12. For example, the American Psychiatric Association tells us that individuals suffering from mental illness may experience delusions—erroneous perceptions of the outside world held with strong conviction. They may believe, incorrectly, that others are threatening them harm (persecutory delusions), that God has commanded them to engage in certain conduct (religious delusions), or that they or others are condemned to a life of suffering (depressive delusions). Brief for American Psychiatric Association et al. as *Amici Curiae* 25–26. Such delusions may, in some cases, lead the patient to behave violently. *Id.*, at 28. But they likely would not interfere with his or her perception in such a way as to negate *mens rea*. See H. R. Rep. No. 98–577, p. 15, n. 23 (1984) (“Mental illness rarely, if ever, renders a person incapable of understanding what he or she is doing. Mental illness does not, for example, alter the perception of shooting a person to that of shooting a tree”).

Kansas’ abolition of the second part of the *M’Naghten* test requires conviction of a broad swath of defendants who are obviously insane and would be adjudged not guilty under any traditional form of the defense. This result offends deeply entrenched and widely recognized moral principles underpinning our criminal laws. See, e.g., National Comm’n on Reform of Fed. Crim. Laws, Final Report, Proposed New Fed. Crim. Code § 503, pp. 40–41 (1971) (to attribute guilt to a “manifestly psychotic person” would “be immoral and inconsistent with the aim of a criminal code”); H. R. Rep. No. 98–577, at 7–8 (“[T]he abolition of the affirmative insanity defense would alter that fundamental basis of Anglo-American criminal law: the existence of moral culpability as a prerequisite for punishment”); ABA Criminal Justice Mental Health Standards § 7–6.1, pp. 336–338 (1989) (rejecting the *mens rea* approach “out of hand” as “a jarring reversal of

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hundreds of years of moral and legal history” that “inhibits if not prevents the exercise of humane judgment that has distinguished our criminal law heritage”).

By contrast, the rule adopted by some States that a defendant must be acquitted if he was unable to appreciate the *legal* wrongfulness of his acts, see *ante*, at 293–295, would likely lead to acquittal in the mine run of such cases. See *supra*, at 312–313. If that is so, then that rule would not pose the same due process problem as Kansas’ approach. That issue is not before us, as Kansas’ law does not provide even that protection to mentally ill defendants.

C

Kansas and the Solicitor General, in their efforts to justify Kansas’ change, make four important arguments. First, they point to cases in this Court in which we have said that the States have broad leeway in shaping the insanity defense. See *Leland*, 343 U. S. 790; *Clark*, 548 U. S. 735. In *Leland*, we rejected the defendant’s argument that the Constitution required the adoption of the “‘irresistible impulse’” test. 343 U. S., at 800–801. Similarly, in *Clark*, we upheld Arizona’s effort to eliminate the first part of the *M’Naghten* rule, applicable to defendants whose mental illness deprived them of the ability to know the “‘nature and quality of the act,’” 548 U. S., at 747–748. If Arizona can eliminate the first prong of *M’Naghten*, Kansas asks, why can Kansas not eliminate the second part?

The answer to this question lies in the fact that Arizona, while amending the insanity provisions of its criminal code, did not in practice eliminate the traditional insanity defense in any significant part. See 548 U. S., at 752, n. 20 (reserving the question whether “the Constitution mandates an insanity defense”). As we pointed out, “cognitive incapacity is itself enough to demonstrate moral incapacity.” *Id.*, at 753. Evidence that the defendant did not know what he was doing would also tend to establish that he did not know that

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it was wrong. *Id.*, at 753–754. And Prosecution One (he thought the victim was a dog) would still fail. The ability of the States to refuse to adopt other insanity tests, such as the “irresistible impulse” test or the “product of mental illness” test are also beside the point. See *Leland*, 343 U. S., at 800–801. Those tests both *expand* upon *M’Naghten*’s principles. Their elimination would cut the defense back to what it traditionally has been, not, as here, eliminate its very essence.

Second, the United States as *amicus curiae* suggests that the insanity defense is simply too difficult for juries to administer. Brief for United States as *Amicus Curiae* 12–13. Without doubt, assessing the defendant’s claim of insanity is difficult. That is one reason I believe that States must remain free to refine and redefine their insanity rules within broad bounds. But juries have been making that determination for centuries and continue to do so in 45 States. And I do not see how an administrative difficulty can justify abolishing the heart of the defense.

Third, Kansas argues that it has not abolished the insanity defense or any significant part of it. It has simply moved the stage at which a defendant can present the full range of mental-capacity evidence to sentencing. See Brief for Respondent 8; *ante*, at 277. But our tradition demands that an insane defendant should not be found guilty in the first place. Moreover, the relief that Kansas offers, in the form of sentencing discretion and the possibility of commitment in lieu of incarceration, is a matter of judicial discretion, not of right. See *State v. Maestas*, 298 Kan. 765, 316 P. 3d 724 (2014). The insane defendant is, under Kansas law, exposed to harsh criminal sanctions up to and including death. And Kansas’ sentencing provisions do nothing to alleviate the stigma and the collateral consequences of a criminal conviction.

Finally, Kansas argues that the insane, provided they are capable of intentional action, are culpable and should be held liable for their antisocial conduct. Brief for Respondent 40. To say this, however, is simply to restate the conclusion for

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which Kansas argues in this case. It is a conclusion that in my view runs contrary to a legal tradition that embodies a fundamental precept of our criminal law and that stretches back, at least, to the origins of our Nation.

For these reasons, with respect, I dissent.

APPENDIX

M’Naghten

State	Text
Alabama	“It is an affirmative defense to a prosecution for any crime that, at the time of the commission of the acts constituting the offense, the defendant, as a result of severe mental disease or defect, was unable to appreciate the nature and quality or wrongfulness of his acts.” Ala. Code § 13A–3–1(a) (2015).
California	“In any criminal proceeding, including any juvenile court proceeding, in which a plea of not guilty by reason of insanity is entered, this defense shall be found by the trier of fact only when the accused person proves by a preponderance of the evidence that he or she was incapable of knowing or understanding the nature and quality of his or her act and of distinguishing right from wrong at the time of the commission of the offense.” Cal. Penal Code Ann. § 25(b) (West 2014).
Colorado	“(1) The applicable test of insanity shall be: “(a) A person who is so diseased or defective in mind at the time of the commission of the act as to be incapable of distinguishing right from wrong with respect to that act is not accountable; except that care should be taken not to confuse such mental disease or defect with moral obliquity, mental depravity, or passion growing out of anger, revenge, hatred, or other motives and kindred evil conditions, for, when the act is induced by any of these causes, the person is accountable to the law; or “(b) A person who suffered from a condition of mind caused by mental disease or defect that prevented the person from forming a culpable mental state that is an essential element of a crime charged, but care should be taken not to confuse such mental disease or defect with moral obliquity, mental depravity, or passion growing out of anger, revenge, hatred, or other motives and kindred evil conditions because, when the act is induced by any of these causes, the person is accountable to the law.” Colo. Rev. Stat. § 16–8–101.5(1) (2019).
Florida	“(1) AFFIRMATIVE DEFENSE.—All persons are presumed to be sane. It is an affirmative defense to a criminal prosecution that, at the time of the commission of the acts constituting the offense, the defendant was insane. Insanity is established when: “(a) The defendant had a mental infirmity, disease, or defect; and “(b) Because of this condition, the defendant: “1. Did not know what he or she was doing or its consequences; or “2. Although the defendant knew what he or she was doing and its consequences, the defendant did not know that what he or she was doing was wrong.

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State	Text
	“Mental infirmity, disease, or defect does not constitute a defense of insanity except as provided in this subsection.” Fla. Stat. § 775.027 (2018).
Iowa	“A person shall not be convicted of a crime if at the time the crime is committed the person suffers from such a diseased or deranged condition of the mind as to render the person incapable of knowing the nature and quality of the act the person is committing or incapable of distinguishing between right and wrong in relation to that act.” Iowa Code § 701.4 (2016).
Minnesota	“No person having a mental illness or cognitive impairment so as to be incapable of understanding the proceedings or making a defense shall be tried, sentenced, or punished for any crime; but the person shall not be excused from criminal liability except upon proof that at the time of committing the alleged criminal act the person was laboring under such a defect of reason, from one of these causes, as not to know the nature of the act, or that it was wrong.” Minn. Stat. § 611.026 (2019).
Mississippi	“In determining sanity in criminal cases Mississippi utilizes the common law <i>M’Naghten</i> test. Under the <i>M’Naghten</i> test, the accused must be laboring under such defect of reason from disease of the mind as (1) not to know the nature and quality of the act he was doing or (2) if he did know it, that he did not know that what he was doing was wrong.” <i>Parker v. State</i> , 273 So. 3d 695, 705–706 (Miss. 2019) (internal quotation marks and footnote omitted).
Missouri	“A person is not responsible for criminal conduct if at the time of such conduct as a result of mental disease or defect he was incapable of knowing and appreciating the nature, quality or wrongfulness of his or her conduct.” Mo. Rev. Stat. § 562.086(1) (2016).
Nebraska	“Under our current common-law definition, the two requirements for the insanity defense are that (1) the defendant had a mental disease or defect at the time of the crime and (2) the defendant did not know or understand the nature and consequences of his or her actions or that he or she did not know the difference between right and wrong.” <i>State v. Hotz</i> , 281 Neb. 260, 270, 795 N. W. 2d 645, 653 (2011).
Nevada	“To qualify as being legally insane, a defendant must be in a delusional state such that he cannot know or understand the nature and capacity of his act, or his delusion must be such that he cannot appreciate the wrongfulness of his act, that is, that the act is not authorized by law.” <i>Finger v. State</i> , 117 Nev. 548, 576, 27 P. 3d 66, 84–85 (2001).
New Jersey	“A person is not criminally responsible for conduct if at the time of such conduct he was laboring under such a defect of reason, from disease of the mind as not to know the nature and quality of the act he was doing, or if he did know it, that he did not know what he was doing was wrong.” N. J. Stat. Ann. § 2C:4–1 (West 2015).
New York	“In any prosecution for an offense, it is an affirmative defense that when the defendant engaged in the proscribed conduct, he lacked criminal responsibility by reason of mental disease or defect. Such

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State	Text
	lack of criminal responsibility means that at the time of such conduct, as a result of mental disease or defect, he lacked substantial capacity to know or appreciate either: “1. The nature and consequences of such conduct; or “2. That such conduct was wrong.” N. Y. Penal Law Ann. § 40.15 (West 2009).
North Carolina	“[A]n accused is legally insane and exempt from criminal responsibility by reason thereof if he commits an act which would otherwise be punishable as a crime, and at the time of so doing is laboring under such a defect of reason, from disease of the mind, as to be incapable of knowing the nature and quality of the act he is doing, or, if he does know this, incapable of distinguishing between right and wrong in relation to such act.” <i>State v. Thompson</i>, 328 N. C. 477, 485–486, 402 S. E. 2d 386, 390 (1991).
Oklahoma	“Oklahoma uses the <i>M’Naghten</i> test to determine the issue of sanity at the time of the crime. This Court has held that the <i>M’Naghten</i> insanity test, as applied in Oklahoma, has two prongs. Under the first prong, the defendant is considered insane if he is suffering from a mental disability such that he does not know his acts are wrong and he is unable to distinguish right from wrong with respect to his acts. Under the second prong, the defendant is considered insane if suffering from a disability of reason or disease of the mind such that he does not understand the nature or consequences of his acts or omissions. The defendant need only satisfy one of these prongs in order to be found not guilty by reason of insanity.” <i>Cheney v. State</i>, 909 P. 2d 74, 90 (Okla. Crim. App. 1995) (footnotes omitted).
Pennsylvania	“Common law <i>M’Naghten</i>’s Rule preserved.—Nothing in this section shall be deemed to repeal or otherwise abrogate the common law defense of insanity (<i>M’Naghten</i>’s Rule) in effect in this Commonwealth on the effective date of this section.” 18 Pa. Cons. Stat. § 314(d) (2015).
Tennessee	“It is an affirmative defense to prosecution that, at the time of the commission of the acts constituting the offense, the defendant, as a result of a severe mental disease or defect, was unable to appreciate the nature or wrongfulness of the defendant’s acts.” Tenn. Code Ann. § 39–11–501(a) (2018).
Washington	“To establish the defense of insanity, it must be shown that: “(1) At the time of the commission of the offense, as a result of mental disease or defect, the mind of the actor was affected to such an extent that: “(a) He or she was unable to perceive the nature and quality of the act with which he or she is charged; or “(b) He or she was unable to tell right from wrong with reference to the particular act charged.” Wash. Rev. Code § 9A.12.010 (2015).
Federal	“Affirmative Defense.—It is an affirmative defense to a prosecution under any Federal statute that, at the time of the commission of the acts constituting the offense, the defendant, as a result of a severe mental disease or defect, was unable to appreciate the nature and quality or the wrongfulness of his acts.” 18 U. S. C. § 17.

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M’Naghten Plus Volitional Incapacity

State	Text
Georgia	“A person shall not be found guilty of a crime if, at the time of the act, omission, or negligence constituting the crime, the person did not have mental capacity to distinguish between right and wrong in relation to such act, omission, or negligence.” Ga. Code Ann. § 16–3–2 (2019). “A person shall not be found guilty of a crime when, at the time of the act, omission, or negligence constituting the crime, the person, because of mental disease, injury, or congenital deficiency, acted as he did because of a delusional compulsion as to such act which overmastered his will to resist committing the crime.” § 16–3–3.
New Mexico	“In order to support a verdict of insanity under the M’Naghten test, the jury must be satisfied that the defendant (1) did not know the nature and quality of the act or (2) did not know that it was wrong. This rule prevailed in New Mexico until 1954 when this court in <i>State v. White</i>, 56 N. M. 324, 270 P. 2d 727 (1954) made a careful analysis of the authorities and made a limited extension of the M’Naghten rule, adding a third ingredient. The court held that if the accused, (3) as a result of disease of the mind ‘was incapable of preventing himself from committing’ the crime, he could be adjudged insane and thereby relieved of legal responsibility for what would otherwise be a criminal act.” <i>State v. Hartley</i>, 90 N. M. 488, 490, 565 P. 2d 658, 660 (1977).
Virginia	“As applied in Virginia, the defense of insanity provides that a defendant may prove that at the time of the commission of the act, he was suffering from a mental disease or defect such that he did not know the nature and quality of the act he was doing, or, if he did know it, he did not know what he was doing was wrong. . . . In addition, we have approved in appropriate cases the granting of an instruction defining an ‘irresistible impulse’ as a form of legal insanity. The irresistible impulse doctrine is applicable only to that class of cases where the accused is able to understand the nature and consequences of his act and knows it is wrong, but his mind has become so impaired by disease that he is totally deprived of the mental power to control or restrain his act.” <i>Orndorff v. Commonwealth</i>, 279 Va. 597, 601, n. 5, 691 S. E. 2d 177, 179, n. 5 (2010) (internal quotation marks and citation omitted).

Moral Incapacity

State	Text
Arizona	“A person may be found guilty except insane if at the time of the commission of the criminal act the person was afflicted with a mental disease or defect of such severity that the person did not know the criminal act was wrong.” Ariz. Rev. Stat. Ann. § 13–502(A) (2010).
Delaware	“In any prosecution for an offense, it is an affirmative defense that, at the time of the conduct charged, as a result of mental illness or serious mental disorder, the accused lacked substantial capacity to appreciate the wrongfulness of the accused’s conduct.” Del. Code Ann., Tit. 11, § 401(a) (2015).

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State	Text
Illinois	“A person is not criminally responsible for conduct if at the time of such conduct, as a result of mental disease or mental defect, he lacks substantial capacity to appreciate the criminality of his conduct.” Ill. Comp. Stat., ch. 720, § 5/6–2(a) (West 2017).
Indiana	“A person is not responsible for having engaged in prohibited conduct if, as a result of mental disease or defect, he was unable to appreciate the wrongfulness of the conduct at the time of the offense.” Ind. Code § 35–41–3–6(a) (2019).
Louisiana	“If the circumstances indicate that because of a mental disease or mental defect the offender was incapable of distinguishing between right and wrong with reference to the conduct in question, the offender shall be exempt from criminal responsibility.” La. Rev. Stat. Ann. § 14:14 (West 2016).
Maine	“A defendant is not criminally responsible by reason of insanity if, at the time of the criminal conduct, as a result of mental disease or defect, the defendant lacked substantial capacity to appreciate the wrongfulness of the criminal conduct.” Me. Rev. Stat. Ann., Tit. 17, § 39(1) (2006).
Ohio	“A person is ‘not guilty by reason of insanity’ relative to a charge of an offense only if the person proves, in the manner specified in section 2901.05 of the Revised Code, that at the time of the commission of the offense, the person did not know, as a result of a severe mental disease or defect, the wrongfulness of the person’s acts.” Ohio Rev. Code Ann. § 2901.01(14) (Lexis 2014).
South Carolina	“It is an affirmative defense to a prosecution for a crime that, at the time of the commission of the act constituting the offense, the defendant, as a result of mental disease or defect, lacked the capacity to distinguish moral or legal right from moral or legal wrong or to recognize the particular act charged as morally or legally wrong.” S. C. Code Ann. § 17–24–10(A) (2014).
South Dakota	“‘Insanity,’ the condition of a person temporarily or partially deprived of reason, upon proof that at the time of committing the act, the person was incapable of knowing its wrongfulness, but not including an abnormality manifested only by repeated unlawful or antisocial behavior.” S. D. Codified Laws § 22–1–2(20) (2017). “Insanity is an affirmative defense to a prosecution for any criminal offense.” § 22–5–10.
Texas	“It is an affirmative defense to prosecution that, at the time of the conduct charged, the actor, as a result of severe mental disease or defect, did not know that his conduct was wrong.” Tex. Penal Code Ann. § 8.01(a) (West 2011).

Model Penal Code

State	Text
Arkansas	“‘Lack of criminal responsibility’ means that due to a mental disease or defect a defendant lacked the capacity at the time of the alleged offense to either: “(A) Appreciate the criminality of his or her conduct; or

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State	Text
	“(B) Conform his or her conduct to the requirements of the law.” Ark. Code Ann. § 5–2–301(6) (Supp. 2019).
Connecticut	“In any prosecution for an offense, it shall be an affirmative defense that the defendant, at the time he committed the proscribed act or acts, lacked substantial capacity, as a result of mental disease or defect, either to appreciate the wrongfulness of his conduct or to control his conduct within the requirements of the law.” Conn. Gen. Stat. § 53a–13(a) (2017).
Hawaii	“A person is not responsible, under this Code, for conduct if at the time of the conduct as a result of physical or mental disease, disorder, or defect the person lacks substantial capacity either to appreciate the wrongfulness of the person’s conduct or to conform the person’s conduct to the requirements of law.” Haw. Rev. Stat. § 704–400(1) (2014).
Kentucky	“A person is not responsible for criminal conduct if at the time of such conduct, as a result of mental illness or intellectual disability, he lacks substantial capacity either to appreciate the criminality of his conduct or to conform his conduct to the requirements of law.” Ky. Rev. Stat. Ann. § 504.020(1) (West 2016).
Maryland	“A defendant is not criminally responsible for criminal conduct if, at the time of that conduct, the defendant, because of a mental disorder or mental retardation, lacks substantial capacity to: “(1) appreciate the criminality of that conduct; or “(2) conform that conduct to the requirements of law.” Md. Crim. Proc. Code Ann. § 3–109(a) (2018).
Massachusetts	“1. <i>Criminal responsibility.</i> Where a defendant asserts a defense of lack of criminal responsibility and there is evidence at trial that, viewed in the light most favorable to the defendant, would permit a reasonable finder of fact to have a reasonable doubt whether the defendant was criminally responsible at the time of the offense, the Commonwealth bears the burden of proving beyond a reasonable doubt that the defendant was criminally responsible. In this process, we require the Commonwealth to prove negatives beyond a reasonable doubt: that the defendant did not have a mental disease or defect at the time of the crime and, if that is not disproved beyond a reasonable doubt, that no mental disease or defect caused the defendant to lack substantial capacity either to appreciate the criminality of his conduct or to conform his conduct to the requirements of law.” <i>Commonwealth v. Lawson</i> , 475 Mass. 806, 811, 62 N. E. 3d 22, 28 (2016) (internal quotation marks and citation omitted).
Michigan	“It is an affirmative defense to a prosecution for a criminal offense that the defendant was legally insane when he or she committed the acts constituting the offense. An individual is legally insane if, as a result of mental illness as defined in section 400a of the mental health code . . . that person lacks substantial capacity either to appreciate the nature and quality or the wrongfulness of his or her conduct or to conform his or her conduct to the requirements of the law.” Mich. Comp. Laws Ann. § 768.21a(1) (West 2000).
Oregon	“A person is guilty except for insanity if, as a result of a qualifying mental disorder at the time of engaging in criminal conduct,

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State	Text
	the person lacks substantial capacity either to appreciate the criminality of the conduct or to conform the conduct to the requirements of law.” Ore. Rev. Stat. § 161.295(1) (2019).
Rhode Island	“A person is not responsible for criminal conduct if at the time of such conduct, as a result of mental disease or defect, his capacity either to appreciate the wrongfulness [of] his conduct or to conform his conduct to the requirements of the law were so substantially impaired that he cannot justly be held responsible.” <i>State v. Carpio</i> , 43 A. 3d 1, 12, n. 10 (R. I. 2012) (internal quotation marks omitted).
Vermont	“The test when used as a defense in criminal cases shall be as follows: “(1) A person is not responsible for criminal conduct if at the time of such conduct as a result of mental disease or defect he or she lacks adequate capacity either to appreciate the criminality of his or her conduct or to conform his or her conduct to the requirements of law.” Vt. Stat. Ann., Tit. 13, § 4801(a) (2018).
West Virginia	“When a defendant in a criminal case raises the issue of insanity, the test of his responsibility for his act is whether, at the time of the commission of the act, it was the result of a mental disease or defect causing the accused to lack the capacity either to appreciate the wrongfulness of his act or to conform his act to the requirements of the law.” <i>State v. Fleming</i> , 237 W. Va. 44, 52–53, 784 S. E. 2d 743, 751–752 (2016).
Wisconsin	“A person is not responsible for criminal conduct if at the time of such conduct as a result of mental disease or defect the person lacked substantial capacity either to appreciate the wrongfulness of his or her conduct or conform his or her conduct to the requirements of law.” Wis. Stat. § 971.15(1) (2016).
Wyoming	“A person is not responsible for criminal conduct if at the time of the criminal conduct, as a result of mental illness or deficiency, he lacked substantial capacity either to appreciate the wrongfulness of his conduct or to conform his conduct to the requirements of law.” Wyo. Stat. Ann. § 7–11–304(a) (2019).
District of Columbia	“A person is not responsible for criminal conduct if at the time of such conduct as a result of a mental disease or defect he lacked substantial capacity either to recognize the wrongfulness of his conduct or to conform his conduct to the requirements of law.” <i>Bethea v. United States</i> , 365 A. 2d 64, 79, and n. 30 (D. C. 1976).

Unique Formulation

State	Text
New Hampshire	“A defendant asserting an insanity defense must prove two elements; first, that at the time he acted, he was suffering from a mental disease or defect; and, second, that a mental disease or defect caused his actions.” <i>State v. Fichera</i> , 153 N. H. 588, 593, 903 A. 2d 1030, 1034 (2006).
North Dakota	“An individual is not criminally responsible for criminal conduct if, as a result of mental disease or defect existing at the time the conduct occurs:

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State	Text
	“a. The individual lacks substantial capacity to comprehend the harmful nature or consequences of the conduct, or the conduct is the result of a loss or serious distortion of the individual's capacity to recognize reality; and “b. It is an essential element of the crime charged that the individual act willfully.” N. D. Cent. Code Ann. § 12.1-04.1-01(1) (2012).

Syllabus

COMCAST CORP. *v.* NATIONAL ASSOCIATION OF
AFRICAN AMERICAN-OWNED MEDIA ET AL.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE NINTH CIRCUIT

No. 18–1171. Argued November 13, 2019—Decided March 23, 2020

Entertainment Studios Network (ESN), an African-American-owned television-network operator, sought to have cable television conglomerate Comcast Corporation carry its channels. Comcast refused, citing lack of programming demand, bandwidth constraints, and a preference for programming not offered by ESN. ESN and the National Association of African American-Owned Media (collectively, ESN) sued, alleging that Comcast’s behavior violated 42 U. S. C. § 1981, which guarantees “[a]ll persons . . . the same right . . . to make and enforce contracts . . . as is enjoyed by white citizens.” The District Court dismissed the complaint for failing plausibly to show that, but for racial animus, Comcast would have contracted with ESN. The Ninth Circuit reversed, holding that ESN needed only to plead facts plausibly showing that race played “some role” in the defendant’s decisionmaking process and that, under this standard, ESN had pleaded a viable claim.

Held: A § 1981 plaintiff bears the burden of showing that the plaintiff’s race was a but-for cause of its injury, and that burden remains constant over the life of the lawsuit. Pp. 331–341.

(a) To prevail, a tort plaintiff typically must prove but-for causation. See *University of Tex. Southwestern Medical Center v. Nassar*, 570 U. S. 338, 347. Normally, too, the essential elements of a claim remain constant throughout the lawsuit. See, e. g., *Lujan v. Defenders of Wildlife*, 504 U. S. 555, 561. ESN suggests that § 1981 creates an exception to one or both of these general principles, either because a § 1981 plaintiff only bears the burden of showing that race was a “motivating factor” in the defendant’s challenged decision or because, even when but-for causation applies at trial, a plausible “motivating factor” showing is all that is necessary to overcome a motion to dismiss at the pleading stage. Pp. 331–341.

(1) Several clues, taken collectively, make clear that § 1981 follows the usual rules. The statute’s text suggests but-for causation: An ordinary English speaker would not say that a plaintiff did not enjoy the “same right” to make contracts “as is enjoyed by white citizens” if race was not a but-for cause affecting the plaintiff’s ability to contract. Nor

does the text suggest that the test should be different in the face of a motion to dismiss. The larger structure and history of the Civil Rights Act of 1866 provide further clues. When enacted, § 1981 did not provide a private enforcement mechanism for violations. That right was judicially created, see *Johnson v. Railway Express Agency, Inc.*, 421 U. S. 454, 459, but even in that era, the Court usually insisted that the legal elements of implied causes of action be at least as demanding as those found in analogous statutory causes of action. That rule supplies useful guidance here, where a neighboring section of the 1866 Act uses the terms “on account of” and “by reason of,” § 2, 14 Stat. 27—phrases often held to indicate but-for causation—and gives no hint that a different rule might apply at different times in the life of a lawsuit. Another provision provides that in cases not provided for by the Act, the common law shall govern, § 3, *ibid.*, which in 1866, usually treated a showing of but-for causation as a prerequisite to a tort suit. This Court’s precedents confirm what the statute’s language and history indicate. See, e. g., *Johnson*, 421 U. S., at 459–460; *Buchanan v. Warley*, 245 U. S. 60, 78–79. Pp. 333–336.

(2) ESN urges applying the “motivating factor” causation test in Title VII of the Civil Rights Act of 1964 to § 1981 cases. But this Court has already twice rejected such efforts in other contexts, see, e. g., *Gross v. FBL Financial Services, Inc.*, 557 U. S. 167, and there is no reason to think it would fit any better here. Moreover, when that test was added to Title VII in the Civil Rights Act of 1991, Congress also amended § 1981 without mentioning “motivating factors.” Even if ESN is correct that those amendments clarified that § 1981 addresses not just contractual *outcomes* but the whole contracting *process*, its claim that a process-oriented right necessarily pairs with a motivating factor causal standard is mistaken. The burden-shifting framework of *McDonnell Douglas Corp. v. Green*, 411 U. S. 792, also supplies no support for the innovations ESN seeks. Pp. 336–341.

(b) The court of appeals should determine in the first instance how the operative amended complaint in this case fares under the proper standard. P. 341.

743 Fed. Appx. 106, vacated and remanded.

GORSUCH, J., delivered the opinion of the Court, in which ROBERTS, C. J., and THOMAS, BREYER, ALITO, SOTOMAYOR, KAGAN, and KAVANAUGH, JJ., joined, and in which GINSBURG, J., joined except for the footnote. GINSBURG, J., filed an opinion concurring in part and concurring in the judgment, *post*, p. 341.